

Mahboob v. State of U.P. — instalment plea relegated to EE under cl. 4.16

Allahabad High Court · Division Bench · 22 April 2010 · Writ-C No. 22209 of 2010 · **Writ disposed; EE to decide instalment request under cl. 4.16**

HEADNOTE

The Division Bench declined to decide a consumer's request to pay electricity dues in instalments and to adjust Rs 25,000 already deposited, treating those as factual matters for the competent authority under clause 4.16 of the U.P. Electricity Supply Code, 2005. The petitioner was directed to apply to the concerned Executive Engineer, who is to decide on merits preferably within one month.

FACTUAL SUMMARY

Mahboob petitioned the Allahabad High Court seeking to pay electricity dues in instalments. He submitted that he had already deposited Rs 25,000, which ought to be adjusted against the outstanding amount. Counsel for the respondent Corporation appeared and referred the Court to clause 4.16 of the U.P. Electricity Supply Code, 2005 as the provision under which the competent authority may grant such relief. The Court treated the request as a factual matter for that authority.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.16

instalment of dues / competent authority

HOLDING

A consumer's request to pay electricity dues in instalments and to have an amount already deposited adjusted is a factual matter the High Court will not resolve; clause 4.16 of the U.P. Electricity Supply Code, 2005 empowers the competent authority to do so, and the consumer is to approach the concerned Executive Engineer for a decision on merits, preferably within one month. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — ENTITLEMENT TO PAY DUES IN INSTALMENTS AND ADJUSTMENT OF RS 25,000 ALREADY DEPOSITED

Left to the Executive Engineer to decide on merits under clause 4.16 ¶ 1